INDEPENDENT CONTRACTOR AGREEMENT

SUPERTRANSPORT, LLC
PO Box 4, Pleasant Hill, Missouri 64080

This Agreement

This Agreement is entered into by and between **SUPERTRANSPORT, LLC** (“Carrier”) and

_____ (“Contractor”).

Carrier is a for-hire motor carrier subject to Federal Motor Carrier Safety Administration (FMCSA) regulations. Contractor is an independent business entity owning or leasing the equipment described in *Appendix A* and desires to lease said equipment with driver(s) to Carrier for the transportation of freight under Carrier’s operating authority.

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1. Independent Contractor Relationship

Contractor is an **independent contractor** and not an employee, agent, or partner of Carrier. Contractor shall be responsible for all taxes, insurance, workers’ compensation (or occupational accident), and employment obligations related to its business. Nothing in this Agreement shall create an employer-employee relationship.

Carrier’s control is limited solely to that required by FMCSA regulations to ensure public safety and compliance.

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2. Equipment Lease & Possession

Contractor leases to Carrier the equipment listed in *Appendix A* for use under Carrier’s authority per 49 C.F.R. § 376. Carrier shall have exclusive possession and control during the term of this lease for regulatory purposes only. Contractor retains full control over operations, drivers, and business methods.

The lease shall remain in effect **month-to-month** until terminated as provided herein.

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3. Compensation & Settlement

Carrier shall pay Contractor **72 % of adjusted gross linehaul revenue**, less deductions and agreed expenses (*Appendix B*). Payment will be made within **15 days** after Carrier's receipt of all required delivery documents. Missing or incomplete documents may incur a $50 administrative deduction.

Each settlement will include a detailed statement showing gross revenue, deductions, and net pay. Contractor has **30 days** to dispute any settlement item; undisputed amounts thereafter are deemed final. Upon termination, final settlement shall occur within **45 days** after all documents are received and equipment returned.

3A. Documentation Requirements

1. **Required Documents:** Contractor must obtain, complete, and submit all shipping documentation, including **Bills of Lading (BOLs)**, **Proofs of Delivery (PODs)**, **lumper receipts**, **scale tickets**, and any other documents required by Carrier, customer, or factoring company. All documents must be legible and include shipper and receiver **names, addresses, dates, times, quantities, signatures, and printed names** of authorized personnel.

2. **Submission Timeline:** All documentation must be uploaded or delivered within **24 hours of delivery** or **before the next dispatch**, whichever occurs first. Digital copies transmitted through Carrier-approved systems shall be deemed originals.

3. **Accuracy & Completion:** Incomplete, missing, or unsigned documents will be deemed **non-compliant** and may delay settlement. Carrier may **withhold payment** until proper documentation is received and verified. Any costs, delays, or factoring fees resulting from incomplete paperwork are the **sole responsibility of Contractor**.

4. **Carrier Assistance:** Carrier may assist in retrieving missing documents; however, administrative or third-party retrieval costs may be deducted from Contractor's settlement.

5. **Acknowledgment:** Contractor acknowledges that accurate and timely documentation is a condition precedent to payment and essential for Carrier's ability to invoice customers.

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4. Security Deposit

1. **Purpose:** Contractor agrees to maintain a **$2,000 refundable security deposit per power unit** with Carrier as assurance for the performance of obligations under this Agreement, including unpaid advances, fines, damage, or chargebacks.

2. **Funding:** Deducted automatically at **$200 per week** until $2,000 is reached.

3. **Accounting:** Carrier shall show all deposit transactions on each settlement. Contractor may request an accounting at any time.

4. **Use of Funds:** Carrier may apply the deposit only to legitimate obligations, itemized on settlements.

5. **Refund:** Any unused portion will be refunded within **45 days after termination**, provided all Carrier property is returned and obligations satisfied. **No interest shall accrue.**

6. **Disputes:** Handled under the Dispute Resolution procedure in this Agreement.

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5. Insurance & Liability

Carrier maintains public liability and cargo insurance per federal requirements. Contractor shall maintain:

- Occupational Accident or Workers' Compensation ($1 million minimum)
- Non-Trucking Liability ($1 million minimum)
- Physical Damage (optional via Carrier)

Contractor is responsible for the first **$2,000** of any cargo or accident claim caused by its negligence.

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6. Contractor Responsibilities

Contractor is solely responsible for:

- Fuel, permits, tolls, taxes, and maintenance
- Hiring, training, and paying drivers
- DOT, FMCSA, and IFTA compliance
- Safe operation and load securement
- Immediate reporting of accidents, fines, or out-of-service events

Contractor indemnifies and holds Carrier harmless from all claims or penalties arising from its operations.

6A. Passenger Policy

1. **Prohibition:** Contractor and its drivers may not transport passengers while operating under this Agreement without prior **written authorization** from Carrier per **49 C.F.R. § 392.60**.

2. **Authorization & Waiver:** Authorized passengers must execute a **Passenger Authorization and Liability Waiver** before any trip.

3. **Liability:** Contractor assumes all risk for any injury or loss involving unauthorized passengers and indemnifies Carrier.

4. **Insurance:** Unauthorized passengers void applicable coverage for that trip; Contractor is liable for any resulting claims.

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7. Operational Independence

Contractor may accept or reject load offers from Carrier and is free to determine its own methods, routes, and schedules consistent with federal and state safety regulations.

While the leased equipment is under the authority and control of **SUPERTRANSPORT, LLC**, Contractor **shall not haul freight for any other carrier** unless prior **written authorization** is granted by Carrier and appropriate trip lease documentation is executed in compliance with **49 C.F.R. §376.22**.

Upon termination or temporary suspension of this lease, Contractor is free to operate under any other motor carrier authority of its choosing.

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8. Right of Set-Off

Carrier may deduct or offset from any settlement amounts owed to Contractor any unpaid obligations, advances, fines, or unreturned equipment.

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9. Confidentiality & Non-Solicitation

Contractor shall not disclose Carrier’s rates, customers, or data, nor solicit freight or transport loads for any customer introduced by Carrier for one year after termination.

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10. Termination

Either party may terminate upon **15 days’ written notice**. Carrier may terminate immediately for safety violations, fraud, or disqualification. Contractor has **five business days** to cure minor breaches. Upon termination, Contractor must promptly return all Carrier property and identification.

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11. Electronic Communication & Signatures

All notices, approvals, and settlements may be electronic. Electronic signatures are legally binding.

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12. Dispute Resolution

Disputes shall be resolved by **binding arbitration** under AAA Commercial Rules in **Cass County, Missouri**, governed by Missouri law.

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13. Entire Agreement

This Agreement, including Appendices A–D and exhibits, constitutes the full understanding between the parties and may only be modified in writing signed by both. May be executed in counterparts.

Note: Separate signatures are not required for Appendices A–D except where indicated for equipment transfers or optional insurance acknowledgments. All appendices are incorporated by reference and enforceable as part of this Agreement.

Signature Page

Carrier: SUPERTRANSPORT, LLC **Address:** PO Box 4, Pleasant Hill, MO 64080

By: _____

Title: _____

Date: _____

CONTRACTOR: _____

Signature: _____

Date: _____

Appendix A – Equipment Identification

Field	Information
Year / Make / Model	_____
VIN	_____
License Plate & State	_____
Trailer Number / VIN (if leased)	_____
Owner / Business Name	_____
EIN or SSN	_____
Address	_____
City / State / ZIP	_____
Phone / Email	_____

◯ I confirm the address is correct.

◯ I have an updated address.

Appendix B – Compensation & Deductions

Term	Details
Linehaul Split	Contractor receives **72% of adjusted gross linehaul revenue**.
Settlement	Weekly, within **15 days** after all required paperwork.
Deductions	Insurance, fuel, maintenance, trailer rental, permits, and operating expenses itemized per settlement.
Disputes	Contractor has **30 days** from receipt to dispute any settlement.
Final Settlement	Within **45 days** after termination and return of equipment.

Appendix C – Equipment Receipt & Return

Field	Information
Equipment (Year / Make / VIN)	_____
Lease Effective Date	_____
Lease Termination Date	_____
Location	_____
Condition	☐ Good ☐ Damage Noted ☐ Other:
	_____
Comments / Notes	_____
Carrier Representative	_____
Contractor	_____
Date	_____

Appendix D – Insurance & Startup Acknowledgment

Category	Description	Responsibility
Required Insurance	Occupational Accident, Non-Trucking Liability	Contractor
Optional Insurance	Physical Damage via Carrier (if elected)	Contractor
Compliance Fees	Registration, Plates, 2290, setup costs	Contractor
Equipment or Trailer Lease	Weekly deduction if applicable	Contractor
Other Authorized Deductions	ELD, BestPass, Transponder	Contractor

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